

Kamakhya Steels v. PVVNL — Clause 4.49 temporary-connection writ dismissed as infructuous

High Court of Judicature at Allahabad · Division Bench · 12 October 2017 · WRIT - C No. - 22866 of 2015 · **Writ dismissed as infructuous; interim vacated.**

HEADNOTE

A consumer's writ against PVVNL's insistence on Clause 4.49 of the U.P. Electricity Supply Code, 2005 as a precondition for a temporary 11 kV connection was dismissed as infructuous by efflux of time. An earlier interim had restrained the licensee from insisting on that clause; it stood vacated. Whether surplus already with the licensee made the demanded bank guarantee unjustified was not decided.

FACTUAL SUMMARY

M/s Kamakhya Steels sought a temporary 11 kV connection from PVVNL. The licensee's 11 February 2014 letter required Clause 4.49 compliance, including a bank guarantee of about Rs 20 lacs. The petitioner said earlier High Court interims left a surplus of about Rs 48 lacs with the respondents, so the demand was unjustified. On 27 April 2015 the Court granted interim relief that Clause 4.49 not be insisted as a precondition. In 2017 counsel stated the writ had become infructuous by efflux of time.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.49

temporary connection — clause 4.49 as precondition

HOLDING

The writ challenging the licensee's insistence on Clause 4.49 of the U.P. Electricity Supply Code, 2005 as a precondition for a temporary 11 kV connection was dismissed as infructuous by efflux of time, and the 27 April 2015 interim restraining that insistence was vacated. Whether surplus already deposited with the licensee made the demanded bank guarantee unjustified was not decided. ¶ 1-3

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER CLAUSE 4.49 ADDITIONAL SECURITY OR BANK GUARANTEE MAY BE INSISTED AS A PRECONDITION FOR A TEMPORARY 11 KV CONNECTION WHEN SURPLUS ALREADY LIES WITH THE LICENSEE

The 27 April 2015 interim had restrained insistence on Clause 4.49; it was vacated on dismissal as infructuous. ¶ 1-3